

24NWCV03704 24NWCV03704

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-06

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Case Number: 24NWCV03704 Hearing Date: August 6, 2026 Dept: R

[DEPT R EX PARTE] MERCY

MEDINA vs VOLKSWAGEN GROUP OF AMERICA, INC., Case No. 24NWCV03704

This lemon law case is set for trial on August 24, 2026 in Dept. SE-R. On August 3, 2026, Defendant VOLKSWAGEN GROUP OF AMERICA, INC. filed a Motion for Leave to Amend its Answer to Plaintiff Mercy Median's Complaint to include an additional "Release and Bar/Res Judicata/Claim Preclusion/Issue Preclusion" affirmative defense. Defendant's Motion for Leave to Amend Answer is scheduled for hearing on August 27, 2026 in Dept. SE-R. In the motion, Defendant contends that the claims in this case were previously resolved in a Final Approval Order and Judgment of a Class Action Settlement in Michael Zhao, et al. v. Volkswagen Group of America, Inc., et al., Civil Action No. 2:21-cv-11251-MCA-MF (U.S. Dist. Ct., Dist. of New Jersey) entered on October 19, 2022. The Settlement Agreement concerned malfunction and failure of water pumps in the Settlement Class Vehicles, which includes Plaintiff's 2108 Audi A5. The Complaint in this case, filed October 16, 2024, does not allege water pump failure. However, Defendant asserts that on November 7, 2025, Plaintiff testified at deposition that the main issue with the Subject Vehicle was the check coolant light, which resulted in replacement of thermostat housing and installation of a new water pump. (Roberson Decl., ¶7.) In response to discovery requests, Plaintiff denied being part of the Zhao class action (Id., ¶4), but Defendant maintains that Plaintiff was in fact a class member and did not opt out of the class action. (Id., ¶8.) In the instant ex parte application, Defendant requests an order advancing its Motion for Leave to Amend Answer, or in the alternative, continuing trial until after the August 27 hearing date. The ex parte application is GRANTED in part. Trial will be continued until after the August 27, 2026 hearing date. The Court

will confer with the parties regarding a new trial date convenient with the Court and Counsel. Moving party to give notice.